



Matrimonial Homes Act 1967

1967 CHAPTER 75

An Act to amend the law of England and Wales as to the rights of a husband or wife to occupy a dwelling house which has been the matrimonial home; and for connected purposes. [27th July 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where one spouse is entitled to occupy a dwelling house by virtue of any estate or interest or contract or by virtue of any enactment giving him or her the right to remain in occupation, and the other spouse is not so entitled, then, subject to the provisions of this Act, the spouse not so entitled shall have the following rights (in this Act referred to as “rights of occupation”):—

Protection against eviction, etc., from matrimonial home of spouse not entitled by virtue of estate, etc., to occupy it.

(a) if in occupation, a right not to be evicted or excluded from the dwelling house or any part thereof by the other spouse except with the leave of the court given by an order under this section;

(b) if not in occupation, a right with the leave of the court so given to enter into and occupy the dwelling house.

(2) So long as one spouse has rights of occupation, either of the spouses may apply to the court for an order declaring, enforcing, restricting or terminating those rights or regulating the exercise by either spouse of the right to occupy the dwelling house.

(3) On an application for an order under this section the court may make such order as it thinks just and reasonable having regard to the conduct of the spouses in relation to

each other and otherwise, to their respective needs and financial resources, to the needs of any children and to all the circumstances of the case, and, without prejudice to the generality of the foregoing provision,—

- (a) may except part of the dwelling house from a spouse's rights of occupation (and in particular a part used wholly or mainly for or in connection with the trade, business or profession of the other spouse) ;
- (b) may order a spouse occupying the dwelling house or any part thereof by virtue of this section to make periodical payments to the other in respect of the occupation ;
- (c) may impose on either spouse obligations as to the repair and maintenance of the dwelling house or the discharge of any liabilities in respect of the dwelling house.

(4) Orders under this section may, in so far as they have a continuing effect, be limited so as to have effect for a period specified in the order or until further order.

(5) Where a spouse is entitled under this section to occupy a dwelling house or any part thereof, any payment or tender made or other thing done by that spouse in or towards satisfaction of any liability of the other spouse in respect of rent, rates, mortgage payments or other outgoings affecting the dwelling house shall, whether or not it is made or done in pursuance of an order under this section, be as good as if made or done by the other spouse ; and a spouse's occupation by virtue of this section shall for purposes of the Rent Acts and of the Landlord and Tenant (Rent Control) Act 1949 be treated as possession by the other spouse.

1949 c. 40.

Where a spouse entitled under this section to occupy a dwelling house or any part thereof makes any payment in or towards satisfaction of any liability of the other spouse in respect of mortgage payments affecting the dwelling house, the person to whom the payment is made may treat it as having been made by that other spouse, but the fact that that person has treated any such payment as having been so made shall not affect any claim of the first-mentioned spouse against the other to an interest in the dwelling house by virtue of the payment.

(6) The jurisdiction conferred on the court by this section shall be exercisable by the High Court or by a county court, and shall be exercisable by a county court notwithstanding that by reason of the amount of the net annual value for rating of the dwelling house or otherwise the jurisdiction would not but for this subsection be exercisable by a county court.

(7) In this Act "dwelling house" includes any building or part thereof which is occupied as a dwelling, and any yard, garden, garage or outhouse belonging to the dwelling house and occupied therewith.

(8) This Act shall not apply to a dwelling house which has at no time been a matrimonial home of the spouses in question; and a spouse's rights of occupation shall continue only so long as the marriage subsists and the other spouse is entitled as mentioned in subsection (1) above to occupy the dwelling house, except where provision is made by section 2 of this Act for those rights to be a charge on an estate or interest in the dwelling house.

2.—(1) Where, at any time during the subsistence of a marriage, one spouse is entitled to occupy a dwelling house by virtue of an estate or interest, then the other spouse's rights of occupation shall be a charge on that estate or interest, having the like priority as if it were an equitable interest created at whichever is the latest of the following dates, that is to say,—

Effect of statutory rights of occupation as charge on dwelling house.

- (a) the date when the spouse so entitled acquires the estate or interest;
- (b) the date of the marriage; and
- (c) the commencement of this Act.

(2) Notwithstanding that a spouse's rights of occupation are a charge on an estate or interest in the dwelling house, those rights shall be brought to an end by—

- (a) the death of the other spouse, or
- (b) the termination (otherwise than by death) of the marriage,

unless in the event of a matrimonial dispute or estrangement the court sees fit to direct otherwise by an order made under section 1 above during the subsistence of the marriage.

(3) Where a spouse's rights of occupation are a charge on the estate or interest of the other spouse—

- (a) any order under section 1 above against the other spouse shall, except in so far as the contrary intention appears, have the like effect against persons deriving title under the other spouse and affected by the charge; and
- (b) subsections (2) to (5) of section 1 above shall apply in relation to any person deriving title under the other spouse and affected by the charge as they apply in relation to the other spouse.

(4) Where a spouse's rights of occupation are a charge on an estate or interest in the dwelling house, and that estate or interest

is surrendered so as to merge in some other estate or interest expectant thereon in such circumstances that, but for the merger, the person taking the estate or interest of the other spouse would be bound by the charge, then the surrender shall have effect subject to the charge and the persons thereafter entitled to the other estate or interest shall, for so long as the estate or interest surrendered would have endured if not so surrendered be treated for all purposes of this Act as deriving title to the other estate or interest under the other spouse by virtue of the surrender.

(5) Where a spouse's rights of occupation are a charge on the estate or interest of the other spouse, and the other spouse—

(a) is adjudged bankrupt or makes a conveyance or assignment of his or her property (including that estate or interest) to trustees for the benefit of his or her creditors generally; or

(b) dies and his or her estate is insolvent;

then, notwithstanding that it is registered in accordance with the following provisions of this section, the charge shall be void against the trustee in bankruptcy, the trustees under the conveyance or assignment or the personal representatives of the deceased spouse, as the case may be.

1925 c. 22.

(6) At the end of section 10(1) of the Land Charges Act 1925 (which lists the classes of charges on, or obligations affecting, land which may be registered as land charges) there shall be added the following paragraph:—

“Class F: A charge affecting any land by virtue of the Matrimonial Homes Act 1967”;

and in the enactments mentioned in the Schedule to this Act there shall be made the consequential amendments provided for by that Schedule.

1925 c. 21.

(7) Where the title to the legal estate by virtue of which a spouse is entitled to occupy a dwelling house is registered under the Land Registration Act 1925 or any enactment replaced by that Act, registration of a land charge affecting the dwelling house by virtue of this Act shall be effected by registering a notice or caution under that Act, and a spouse's rights of occupation shall not be an overriding interest within the meaning of that Act affecting the dwelling house notwithstanding that the spouse is in actual occupation of the dwelling house.

1925 c. 20.

(8) Where a spouse's rights of occupation are a charge on the estate or interest of the other spouse, and that estate or interest is the subject of a mortgage within the meaning of the Law of Property Act 1925, then if, after the date of creation of the mortgage, the charge is registered by virtue of subsection (6) above, the charge shall, for the purposes of section 94 of that Act (which

regulates the rights of mortgagees to make further advances ranking in priority to subsequent mortgages), be deemed to be a mortgage subsequent in date to the first-mentioned mortgage.

3. Where one spouse is entitled by virtue of section 2 above to a charge on the estate or interest of the other spouse in each of two or more dwelling houses, only one of the charges to which that spouse is so entitled shall be registered in accordance with subsection (6) or (7) of that section at any one time, and if any of those charges is registered in accordance with the said subsection (6) or (7), the Chief Land Registrar, on being satisfied that any other of them is so registered, shall cancel the registration of the charge first registered.

Restriction on registration where spouse entitled to more than one charge.

4.—(1) Where one spouse is entitled by virtue of section 2 above to a charge on an estate or interest in a dwelling house and the charge is registered in accordance with subsection (6) or (7) of that section, it shall be a term of any contract for the sale of that estate or interest whereby the vendor agrees to give vacant possession of the dwelling house on completion of the contract that the vendor will before such completion procure the cancellation of the registration of the charge at his expense:

Contract for sale of house affected by registered charge to include term requiring cancellation of registration before completion.

Provided that the foregoing provision shall not apply to any such contract made by a vendor who is entitled to sell the estate or interest in the dwelling house freed from any such charge.

(2) If, on the completion of such a contract as is referred to in subsection (1) above, there is delivered to the purchaser or his solicitor an application by the spouse entitled to the charge for the cancellation of the registration of that charge, the term of the contract for which subsection (1) above provides shall be deemed to have been performed.

(3) This section applies only if and so far as a contrary intention is not expressed in the contract.

(4) This section shall apply to a contract for exchange as it applies to a contract for sale.

(5) This section shall, with the necessary modifications, apply to a contract for the grant of a lease or underlease of a dwelling house as it applies to a contract for the sale of an estate or interest in a dwelling house.

5.—(1) Where a spouse's rights of occupation are a charge on the estate or interest of the other spouse in a dwelling house and the charge is registered in accordance with subsection (6) or (7) of section 2 above, the Chief Land Registrar shall, subject to subsection (2) below, cancel the registration of the charge if he is satisfied—

Cancellation of registration after termination of marriage, etc.

(a) by the production of a certificate or other sufficient evidence, that either spouse is dead, or

- (b) by the production of an official copy of a decree of a court, that the marriage in question has been terminated otherwise than by death, or
- (c) by the production of an order of the court, that the spouse's rights of occupation constituting the charge have been terminated by the order.

(2) Where—

- (a) the marriage in question has been terminated by the death of the spouse entitled to an estate or interest in the dwelling house or otherwise than by death, and
- (b) an order affecting the charge of the spouse not so entitled had been made by virtue of section 2(2) above,

then if, after the making of the order, registration of the charge was renewed or the charge registered in pursuance of subsection (3) below, the Chief Land Registrar shall not cancel the registration of the charge in accordance with subsection (1) above unless he is also satisfied that the order has ceased to have effect.

(3) Where such an order has been made, then, for the purposes of subsection (2) above, the spouse entitled to the charge affected by the order may—

- (a) if before the date of the order the charge was registered in accordance with subsection (6) or (7) of section 2 above, renew the registration of the charge, and
- (b) if before the said date the charge was not so registered, register the charge in accordance with the said subsection (6) or (7).

(4) Renewal of the registration of a charge in pursuance of subsection (3) above shall be effected in such manner as may be prescribed, and an application for such renewal or for registration of a charge in pursuance of that subsection shall contain such particulars of any order affecting the charge made by virtue of section 2(2) above as may be prescribed.

(5) The renewal in pursuance of subsection (3) above of the registration of a charge shall not affect the priority of the charge.

1925 c. 22.
1925 c. 21.

(6) In this section "prescribed" means prescribed by rules made under section 19 of the Land Charges Act 1925 or section 144 of the Land Registration Act 1925, as the circumstances of the case require.

Release of
rights of
occupation and
postponement
of priority of
charge.

6.—(1) A spouse entitled to rights of occupation may by a release in writing release those rights or release them as respects part only of the dwelling house affected by them.

(2) Where a contract is made for the sale of an estate or interest in a dwelling house, or for the grant of a lease or under-lease of a dwelling house, being (in either case) a dwelling house

affected by a charge registered in accordance with subsection (6) or (7) of section 2 above, then, without prejudice to subsection (1) above, the rights of occupation constituting the charge shall be deemed to have been released on the happening of whichever of the following events first occurs, that is to say, the delivery to the purchaser or lessee, as the case may be, or his solicitor on completion of the contract of an application by the spouse entitled to the charge for the cancellation of the registration of the charge or the lodging of such an application at Her Majesty's Land Registry.

(3) A spouse entitled by virtue of section 2 above to a charge on an estate or interest of the other spouse may agree in writing that any other charge on, or interest in, that estate or interest shall rank in priority to the charge to which that spouse is so entitled.

7.—(1) Where one spouse is entitled, either in his or her own right or jointly with the other spouse, to occupy a dwelling house by virtue of a tenancy to which the Rent Acts apply or of a statutory tenancy and the marriage is terminated by the grant of a decree of divorce or nullity of marriage, the court by which the decree is granted may make an order under subsection (2) or (3) below according to the circumstances.

Provision
for case
where Rent
Acts apply
and marriage
is terminated
by divorce,
etc.

(2) Where a spouse is entitled as aforesaid to occupy the dwelling house by virtue of a tenancy to which the Rent Acts apply, the court may by order direct that, as from the date on which the decree is made absolute, there shall, by virtue of the order and without further assurance, be transferred to, and vested in, his or her former spouse—

- (a) the estate or interest which the spouse so entitled had in the dwelling house immediately before that date by virtue of the lease or agreement creating the tenancy and any assignment of that lease or agreement, with all rights, privileges and appurtenances attaching to that estate or interest but subject to all covenants, obligations, liabilities and incumbrances to which it is subject; and
- (b) where the said spouse is an assignee of such lease or agreement, the liability of the said spouse under any covenant of indemnity by the assignee expressed or implied in the assignment of the lease or agreement to that spouse;

and where such an order is made, any liability or obligation to which the said spouse is subject under any covenant having reference to the dwelling house in such lease or agreement, being a liability or obligation falling due to be discharged or performed on or after the date on which the decree is made absolute, shall not be enforceable against the said spouse.

1965 c. 75.

(3) Where the spouse is entitled as aforesaid to occupy the dwelling house by virtue of a statutory tenancy, the court may by order direct that, as from the date on which the decree is made absolute, that spouse shall cease to be entitled to occupy the dwelling house and that his or her former spouse shall be deemed to be the tenant or, as the case may be, the sole tenant under that statutory tenancy; and the question whether the provisions of the Rent Acts or of section 13 of the Rent Act 1965 as to the succession by the widow of a deceased tenant or by a member of his family to the right to retain possession are capable of having effect in the event of the death of the person deemed by an order under this subsection to be the tenant or sole tenant under the statutory tenancy shall be determined according as those provisions have or have not already had effect in relation to the statutory tenancy.

(4) Where the court makes an order under this section it may by the order direct that both spouses shall be jointly and severally liable to discharge or perform any or all of the liabilities and obligations in respect of the dwelling house (whether arising under the tenancy or otherwise) which have at the date of the order fallen due to be discharged or performed by one only of the spouses or which, but for the direction, would before the date on which the decree is made absolute fall due to be discharged or performed by one only of them; and where the court gives such a direction it may further direct that either spouse shall be liable to indemnify the other in whole or in part against any payment made or expenses incurred by the other in discharging or performing any such liability or obligation.

(5) An order under this section may be made at any time after a decree nisi has been granted and before the decree is made absolute.

(6) Rules of court shall be made requiring the court before it makes an order under this section to give the landlord of the dwelling house to which the order will relate an opportunity of being heard.

(7) Where a spouse is entitled to occupy a dwelling house by virtue of a tenancy, this section shall not affect the operation of sections 1 and 2 above in relation to the other spouse's rights of occupation, and the court's power to make orders under this section shall be in addition to the powers conferred by those sections.

(8) In this section—

“landlord” and “tenancy” have the same meanings as in the Increase of Rent and Mortgage Interest (Restrictions) Act 1920;

1920 c. 17.

“statutory tenancy” has the same meaning as in the Housing Repairs and Rents Act 1954.

8.—(1) This Act may be cited as the Matrimonial Homes Act 1967, and shall come into operation on such date as the Lord Chancellor may by order made by statutory instrument appoint.

Short title,
commence-
ment,
extent and
construction.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) In this Act “the Rent Acts” means the Rent and Mortgage Interest Restrictions Acts 1920 to 1939 or any of those Acts, and references in this Act to those Acts or to any other enactment are references to the Acts or enactment as amended, extended or applied by any other enactment, including this Act.

Section 2(6).

SCHEDULE

CONSEQUENTIAL AMENDMENTS AS TO LAND CHARGES

1925 c. 22.

1. In section 10(6) of the Land Charges Act 1925 (which provides for registration in the appropriate local deeds registry instead of the land registry of certain charges affecting land in Yorkshire) after the words "equitable charge" there shall be inserted the words "land charge of Class F".

2. In section 12(2) of the Land Charges Act 1925 (which relates to the expenses of registering land charges) after the words "Class E" there shall be inserted the words "or Class F".

3. At the end of section 13 of the Land Charges Act 1925 (which protects purchasers against land charges created after certain dates) there shall be added the following subsection:—

"(3) A land charge of Class F shall be void as against a purchaser of the land charged therewith, or of any interest in such land, unless the land charge is registered in the appropriate register before the completion of the purchase."

1959 c. 22.

4. In Schedule 1 to the County Courts Act 1959 (which specifies the cases in which a county court has jurisdiction under certain enactments), at the end of the second column of the entry relating to section 10(8) of the Land Charges Act 1925, there shall be added the following paragraph:—

"In a case where the land charge is within Class F, if the land affected by the charge is the subject of an order made by the court under section 1 of the Matrimonial Homes Act 1967 or an application for an order under the said section 1 relating to such land has been made to the court."